

		The Court notes that Plaintiff/Judgment Creditor inaccurately contends judgment was entered against Claire Benchetrit aka Claire B. Staal aka Kreina Staal on September 13, 2024. (Velen Decl., ¶ 2.) In the Court’s October 8, 2025, minute order, the Court specifically noted that the September 13, 2024 judgment dismissed defendant Claire Benchetrit, aka Claire B. Staal, aka Kreina Staal from the action. (October 8, 2025 Minute Order; Judgment by Default.) In that same minute order, the Court denied Plaintiff/Judgment Creditor’s ex parte application for a turnover order, The unopposed motion by Plaintiff/Judgment Creditor Merchant Capital Source, LLC dba Zinch (“Judgment Creditor”) for an order compelling compliance with a bank levy and a turnover order against Judgment Debtors Pima Orthopedic Physicians, LLC, dba Pima Orthopedic Physicians, Arizona Medcorp, Inc, dba Knees First, John C. Medlen MD PC, and Claire Benchetrit, aka Claire B. Staal, aka Kreina Staal is DENIED. Judgment Creditor shall give notice.
56	<i>Redhead vs. General Motors, LLC</i>	This ruling addresses Defendant’s (General Motors, LLC) Demurrer to the Second Amended Complaint and Defendant’s Motion to Strike Portions of the Second Amended Complaint. The demurrer brought by Defendant General Motors, LLC (“Defendant”) pertaining to the fifth cause of action for fraudulent inducement – concealment alleged in the Second Amended Complaint (“SAC”) filed by Plaintiffs Raymond Redhead and Wesco Security Systems, Inc. (collectively, “Plaintiffs”) is OVERRULED in part and SUSTAINED in part with leave to

amend. Defendant's motion to strike the prayer for punitive damages from Plaintiffs' SAC is **GRANTED with leave to amend.**

As an initial matter, the Court notes the parties' proofs of service did not include the server's email address. (Code Civ. Proc., § 1013b, subd. (b)(1).) The parties are reminded to comply with CCP section 1013b when electronically serving documents.

DEMURRER TO SAC

Statute of limitations

There is no dispute this cause of action is governed by the 3-year statute of limitations set forth in CCP section 338, subdivision (d), which provides as follows: "An action for relief on the ground of fraud or mistake. The cause of action in that case is not deemed to have accrued until the discovery, by the aggrieved party, of the facts constituting the fraud or mistake." (Code Civ. Proc., § 338, subd. (d).)

"In order for the bar of the statute of limitations to be raised by demurrer, the defect must clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows that the action may be barred." (Marshall v. Gibson,

Dunn & Crutcher (1995) 37 Cal.App.4th 1397, 1403.)

Here, the SAC does not on its face show that the claim is time-barred. The SAC alleges Plaintiff entered into a warranty contract with Defendant regarding the Subject Vehicle on October 8, 2021. (SAC, ¶ 7.) Defendant actively concealed and

failed to disclose the engine defect to Plaintiffs at the time of sale, repair and thereafter. (Id., ¶¶ 33, 58, 63, 65, 74, 78, and 85.) Defects, including the engine defect, manifested itself within the applicable express warranty period. (Id., ¶ 13.) The applicable express warranty period is 3 years or 36,000 miles for the bumper to bumper warranty and 5 years or 60,000 miles for the powertrain. (Id., Exhibit A.) Based on paragraph 12, the defects manifested within the three or five years Plaintiff owned the Subject Vehicle. The SAC only alleges one engine warranty repair took place on or about July 9, 2024, about seven months before Plaintiffs commenced this action. (Id., ¶ 24.) The SAC also alleges “Plaintiffs discovered Defendant’s wrongful conduct alleged herein shortly before filing this action as the Vehicle continued to exhibit symptoms of defects following GM’s unsuccessful attempts to repair them.” (SAC, ¶ 36; see, ¶ 75.) Accordingly, the demurrer as to the statute of limitations is **overruled**.

Sufficiency of allegations

The elements of a cause of action for fraudulent inducement are (1) a fraudulent representation; (2) to induce contract (or forbearance); and (3) that is not a part of the contract. (A. A. Baxter Corp. v. Colt Industries, Inc. (1970) 10 Cal.App.3d 144, 153-154.) “The required elements for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would have acted differently if the concealed or suppressed fact was known; and (5) plaintiff sustained damage

	as a result of the concealment or suppression of the material fact.” (Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 40; see, Boschma v. Home Loan Center, Inc. (2011) 198 Cal.App.4th 230, 248.) “A duty to disclose a material fact can arise if (1) it is imposed by statute; (2) the defendant is acting as plaintiff's fiduciary or is in some other confidential relationship with plaintiff that imposes a disclosure duty under the circumstances; (3) the material facts are known or accessible only to defendant, and defendant knows those facts are not known or reasonably discoverable by plaintiff (i.e., exclusive knowledge); (4) the defendant makes representations but fails to disclose other facts that materially qualify the facts disclosed or render the disclosure misleading (i.e., partial concealment); or (5) defendant actively conceals discovery of material fact from plaintiff (i.e., active concealment)...Circumstances (3), (4), and (5) presuppose a preexisting relationship between the parties, such as ‘between seller and buyer, employer and prospective employee, doctor and patient, or parties entering into any kind of contractual agreement. [Citation.] All of these relationships are created by transactions between parties from which a duty to disclose facts material to the transaction arises under certain circumstances.’...’Such a transaction must necessarily arise from dire cannot arise between the defendant and the public at large.” (Rattagan v. Uber Technologies, Inc., 17 Cal.5th at 40-41; see, Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC (2008) 162 Cal.App.4th 858, 867 [“A duty to speak may arise in four ways: it may be directly imposed by statute or other prescriptive law; it may be voluntarily assumed by contractual undertaking;
--	--

	it may arise as an incident of a relationship between the defendant and the plaintiff; and it may arise as a result of other conduct by the defendant that makes it wrongful for him to remain silent.”].) “Suppression of a material fact is actionable when there is a duty of disclosure, which may arise from a relationship between the parties, such as a buyer-seller relationship.” (Dhital v. Nissan North America, Inc. (2022) 84 Cal.App.5th 828, 843.) The particularity requirement necessitates pleading facts that “show how, when, where, to whom, and by what means the representations were tendered.” (Lazar v. Superior Court (1996) 12 Cal.4th 631, 645.) The requirement that fraud must be pleaded with specificity applies equally to a cause of action for fraud based on concealment. (Cansino v. Bank of America (2014) 224 Cal.App.4th 1462, 1472.) “California courts apply the same specificity standard to evaluate the factual underpinnings of a fraudulent concealment claim at the pleading stage, even though the focus of inquiry shifts to the unique elements of the claim For instance, in a case such as this, the court must determine whether the plaintiff has alleged a sufficient factual basis for establishing a duty of disclosure on the part of the defendant independent of the parties’ contract. If the duty allegedly arose by virtue of the parties’ relationship and defendant’s exclusive knowledge or access to certain facts, as Rattagan has alleged here, the complaint must also include specific allegations establishing all the required elements, including (1) the content of the omitted facts, (2) defendant’s awareness of the materiality of those facts, (3) the inaccessibility of the facts to plaintiff, (4) the
--	---